

See also: The Domesday Book 58–59 ■ The Assize of Clarendon 64–65 ■ The trial of Charles I 96–97 ■ The Glorious Revolution and the English Bill of Rights 102–103 ■ The US Constitution and Bill of Rights 110–117

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The English Church shall be free, and shall have its rights undiminished, and its liberties unimpaired. [. . .] This freedom we shall observe ourselves . . .

Magna Carta, Chapter 1

”

element to medieval English kingship; the monarch's authority was considered a contract with his people. His feudal vassals had a right to renounce their fealty if the king broke his side of the bargain.

A dispute with Pope Innocent III worsened the situation. When John rejected the Pope's candidate, Stephen Langton, for Archbishop of Canterbury, the Pope issued an interdict that banned church services in England. In 1209, he excommunicated John. The ban on religious services was deeply felt and further tested the barons' loyalty.

The barons' revolt

John finally capitulated to the Pope, but in 1215, he faced a serious baronial uprising. The rebels gathered in the north and marched toward London. Under pressure from Archbishop Langton to avoid a bloody confrontation, John agreed to negotiations. He met the barons on June 15 in a field beside the Thames at Runnymede in Surrey. They presented the Articles of the Barons, which sought to prevent

almost every royal abuse of power that had occurred during John's reign. John assented and set his seal on the document.

The Great Charter

In 1218, the new document was named Magna Carta (Latin for "Great Charter"). Today, it is revered as a foundation document for modern democracy and the rule of law, but when it was issued, it was a conservative contract, primarily intended to protect the barons' legal rights against royal encroachment.

The charter's 63 chapters begin by confirming (at Archbishop Langton's insistence) that the English Church should be free from royal interference and should have its rights "undiminished." Much of the rest of the charter dealt with baronial grievances. Chapter 2 laid down that heirs of an earl or baron should pay the Crown no more than £100 to take up their inheritance. Chapter 18 stipulated that a widow

could not be forced to remarry against her will (as wealthy widows often were to those favored by the king). Chapter 12, which forbade the raising of scutage except by "common counsel of our kingdom," challenged the king but had little immediate force, as John chose the members of his royal council. Chapter 16 summarized the nobility's major grievance against their monarch by stating that no one should be compelled to do greater service "for a knight's fee" (scutage) than was legally due.

Other chapters had more profound consequences. Chapter 18 laid down that certain assizes should be held by a traveling committee of two justices and four knights in each county at least »

King John signs Magna Carta at Runnymede—a site used for assemblies since ancient times. In reality, the king used the Great Seal to mark his assent to the document.

